

accrued to the Crown by course of law, as by the treason of the subject, or by forfeiture, or on the doctrine of *bona vacantia*, it was not doubted that the Crown could sue without even a previous inquisition. According to Sir T. Clarke, an inquisition was necessary only where the Crown asserting its prerogative chose to make a seizure without interpleading with the subject in Court to establish its title, but where the Crown waiving its prerogative interpleaded with the subject, as by filing a bill, there an inquisition was unnecessary and superfluous (c).

[By the Intestates Estates Act, 1884 (d), the Court is empowered, on the application or with the consent of the Attorney-General, notwithstanding that no office has been found, and no commission issued or executed, to order a sale of any hereditament or any estate or interest therein to which the Crown is entitled, and to dispose of the proceeds of such sale.]

3. **A corporation.**—A trust of lands cannot be limited to a corporation without a license from the Crown, both on general principle, and also by analogy to the statutory enactment as to uses (e). If corporations could take in the *names of trustees* without a license, the rule requiring a license would become a dead letter and the rights of the Crown effectually evaded, for it makes no material difference whether the legal estate be limited to the corporation directly or to a trustee for the corporation.¹

4. **Alien.**—As regards an *alien*, a trust of lands might always have been *declared* in his favour (f), and might as against all but the Crown have been enforced by him [*45] for his own benefit (g); but as the same *mischiefs would follow from an alien's enjoyment of the equi-

(c) *Burgess v. Wheate*, 1 Eden, 188. See now 33 & 34 Vict. c. 23.

[(d) 47 & 48 Vict. c. 71, s. 5.]

(e) See *Shep. Touch.* 509; *Sand. on Uses*, 339, note E.; 15 Ric. II. c. 5.

(f) *Dumoncel v. Dumoncel*, 13 Ir. Eq. Rep. 92; and see *Vin. Ab. Alien*, A. 8; *Godfrey and Dixon's case*,

Godb. 275; *Br. Feff. al. Uses*, 389, a, pl. 29.

(g) See *Barrow v. Watkin*, 24 Beav. 1; *Godfrey and Dixon's case*, *Godb.* 275, but see *Gilb. on Uses*, 43; *King v. Holland*, 11. 16; *S. C. Styl.* 21; *Burney v. Macdonald*, 15 Sim. 6; *Rittson v. Stordy*, 3 Sm. & Gif. 230.

¹ *Hill on Trustees*, 52; *Coleman v. Railroad Co.* 40 Cal. 518.